IN THE NATIONAL COMPANY LAW TRIBUNAL,
NEW DELHI COURT III

Item No. 305
CAA-3(ND)/2023

IN THE MATTER OF:
M/s. Abacus Exim Pvt. Ltd. AND Ever Go Apparels Pvt. Ltd.

.....APPLICANT/PETITIONER

SECTION
U/s 230/232

Order delivered on 19.02.2024

CORAM:
SHRI BACHU VENKAT BALARAM DAS, HON'BLE MEMBER (JUDICIAL)

SHRI ATUL CHATURVEDI, HON'BLE MEMBER (TECHNICAL)

PRESENT:
For the Applicant : Ms. Ashima Jain and Mr. Yash Jain, Advs.
For the RD : Ms. Shankari Mishra, Advocate.
For the OL : Ms. Hemlata Rawat and Mr. Rahul Bhatt, Advs.

ORDER

This is the Second Motion Application.

Heard the submissions made by the Learned Counsel appearing for the Petitioner. We have perused the report filed by the RD and the response submitted by the Petitioner to the observations made by the RD. We have also perused the report filed by the OL and Income Tax Department which have been placed on record by the Petitioner. Further, the Petitioner has given an undertaking with respect to Income Tax dues stating that the Transferee Company shall pay all the Income Tax dues of the Transferor Companies.

Order **reserved**.

Sd/-
(ATUL CHATURVEDI)
MEMBER (TECHNICAL)

Sd/-
(BACHU VENKAT BALARAM DAS)
MEMBER (JUDICIAL)

Shammy
19.02.2024